

ORIGINAL

BEFORE THE
FEDERAL MARITIME COMMISSION

Case No.: 18-07



MARINE TRANSPORT LOGISTICS, INC

Complainant,

vs.

CMA-CGM (America), LLC

Respondent

FORMAL VERIFIED COMPLAINT

Marine Transport Logistics, Inc., (hereinafter "MTL"), by its attorney, Garry Pogil,
complaining of the Respondent, CMA-CGM (America), LLC, (hereinafter "CMA") as follows:

PARTIES

1. MTL is a corporation duly organized under the laws of the State of New York, with a principal place of business at 63 New Hook Road, Bayonne, NJ 07002.
2. MTL is a Non-Vessel Operating Common Carrier (NVOCC), duly licensed by the Federal Maritime Commission (hereinafter "FMC"). Email: alla@mtlworld.com
3. CMA is a Vessel Operating Common Carrier (VOCC), located at One Meadowlands Plaza, Suite 201, East Rutherford, NJ 07073.

JURISDICTION

4. FMC has subject matter jurisdiction over the claims in this action as the above-captioned matter involves contracts for carriage of goods by sea. 46 U.S.C.S. 30701, and the Shipping Act of 1984, 46 U.S.C.S. 40101, et Seq.

FACTUAL ALLEGATIONS

5. Upon information and belief, the source of such being MTL, in or around December of 2017, CMA contracted with MTL for shipping the following containers from United States to Yemen: CMAU7430348, SEGU4981655, TCNU1194396, ECMU9385446, ECMU9889149, BEAU4065028, CMAU5454680, TCLU5063972, and GVCU5007582.

6. Upon information and belief, the source of such information being MTL, CMA was paid by MTL the full freight/shipping charges for all of the above-mentioned containers.

7. Containers CMAU7430348, SEGU4981655, TCNU1194396, ECMU9385446, ECMU9889149 and BEAU4065028 were never delivered to the contracted destination, namely the Port of Aden. Upon information and belief, the source of such information being conversions between MTL and CMA, such containers were never delivered to the contracted destination in Yemen because according to CMA, the authorities in Yemen would not accept such containers due to that country's political landscape.

8. On or about December 6, 2017, CMA e-mailed MTL stating that they will no longer accept bookings of all motor vehicles where the Port of Discharge was Aden in Yemen. Such email also contained an exception for existing bookings, which stated in part: "For existing bookings falling under the above restrictions where the container has been released to the shipper, but not received by CMA CGN, CMA CGN will allow a Change of Destination (COD) to any other Port of Discharge..." However, on or about November 17, 2017, CMA emailed MTL stating: "Please continue to book."

9. On or about January 19, 2018, CMA e-mailed MTL stating that "We can resume service to Aden, but each bkg is subject to approval before being confirmed." Additionally, same

email stated: "Also, do to rising costs caused by the war, we need to raise our rate effective 2/1." Upon information and belief, CMA never justified the manner in which CMA's costs were raised by the war. Additionally, upon information and belief, if according to CMA, service to Aden was resumed, CMA never justified failure to timely ship and deliver the subject containers (CMAU5454680, TCLU5063972 and GVCU5007582) to the contracted destination at the Port of Aden after such containers were accepted at the terminal and were still at the terminal in New York.

10. On or about January 24, 2018, CMA e-mailed MTL stating: "As FYI, I've been informed Yemeni authorities are now instructing us to not accept autos. Seems they cannot make up their minds."

11. On or about January 31, 2018, CMA e-mailed MTL stating: "Per our trade team, we stopped accepting all Automobiles to Yemen since November 2017."

12. Upon information and belief, the source of such information being MTL, with respect to the containers listed in paragraph 5 above, MTL agreed to change the destination and requested a waiver of any charges for storage and demurrage in the Port of Jeddah, and if no waiver were granted, then a list of all charges was requested. However, irrespective of such, CMA did not change the destination, did not cancel the charges, and CMA did not provide a full list of the charges.

13. As to containers CMAU5454680 and TCLU5063972, upon information and belief, the source of such information being MTL, while CMA accepted such containers at the terminal, CMA never loaded such and kept such in New York, citing political instability in Yemen. However, upon information and belief, CMA did not load the containers on a ship that would

have arrived in Yemen before the cited political conflict in that country. Upon information and belief, the source of such being conversations between CMA and MTL, CMA also cited missing consignee information as the reason for failing to load the containers, all of such was denied by MTL.

14. Upon information and belief, CMA failed to rectify the issues addressed in this complaint irrespective of MTL reaching out to CMA on multiple occasions.

FIRST CAUSE OF ACTION

(Violation of Section 41102(c) of the Shipping Act)

15. Complainant repeats paragraphs 1 to 14 above.

16. Respondent violated Section 41102(c) of the Shipping Act in that such respondent failed to establish, observe, and enforce just reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivery of property by failing to deliver the cargo to the contracted destination; by providing conflicting information as to the country conditions and customs regulations in Yemen, namely the Port of Aden; by failing to provide accurate and complete accounting of detention/demurrage/storage charges; by failing to change the port of destination in a manner that other similarly situated carriers have done; and by failing to timely load the cargo, specifically as to subject containers CMAU5454680, TCLU5063972 and GVCU5007582.

SECOND CAUSE OF ACTION

(Violation of Section 41104 (9) of the Shipping Act)

17. Complainant repeats paragraphs 1 to 16 above.

18. Respondent violated Section 41104 (9) of the Shipping Act in that, such Respondent imposed undue and unreasonable prejudice or disadvantage with respect to the Port of Aden by providing conflicting and vague information with respect to such Port's political landscape and customs regulations, causing Complainant to rely on such; and by failing to ship and divert Complainant's cargo.

THIRD CAUSE OF ACTION

(Violation of Section 41104 (10) of the Shipping Act)

19. Complainant repeats paragraphs 1 to 18 above.

20. Respondent violated Section 41104 (10) of the Shipping Act in that, such Respondent unreasonably refused to deal or negotiate by failing to release the containers even though, upon information and belief, the freight for such was fully paid and MTL was negating in good faith as to the issue of detention/storage charges that continued to accrue for approximately eight (8) months and continues to date. Additionally, even when Respondent confirmed that it would resume service to the Port of Aden, such bookings were conditional upon separate approval even though MTL already had existing booking place for such service for which MTL fully paid.

DAMAGES

21. As a result of the foregoing, with respect to containers CMAU5454680, TCLU5063972, upon information and belief, the source of such being MTL and its financial statements, MTL's customer has ceased doing business with MTL to MTL's detriment constituting potential lost income. Upon information and belief, the source of such being MTL's financial statements, the sales from January 1, 2015 to August 8, 2018 with the customer relating

to these containers amounted to \$1,250,900.26. To date, such customer has not resumed doing business with MTL.

22. Upon information and belief, the source of such information being MTL, the client referenced in paragraph 19 above, had to pay approximately \$17,000 in connection with getting the containers released.

23. Upon information and belief, the source of such information being MTL, as to container FCIU8052464, MTL's client had to pay around \$10,000.

REQUEST FOR A HEARING

24. Complainant respectfully requests a hearing in Washington, D.C.

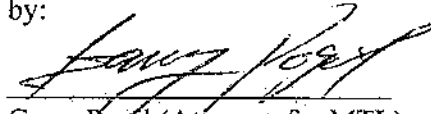
INFORMAL DISPUTE RESOLUTION

25. This matter is currently in mediation via Complainant's Rapid Response Request and request for mediation filed on or about July 14, 2018; however, upon information and belief, six (6) containers have not yet been released by CMA and such continue to accrue substantial detention/storage charges.

WHEREFORE:

- a. Complainant is respectfully requesting an Order for the containers at issue to be released.
- b. Complainant is respectfully requesting a hearing on the damages and all issues.
- c. Any other relief that the Court deems just and proper.

by:



Garry Rogil (Attorney for MTL)

112 West 34 Street, 18 Floor

New York, NY 10120

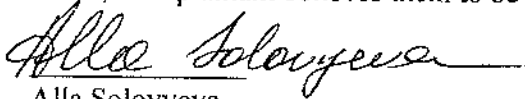
Tel: 917-593-1466

Fax: 646-349-3468

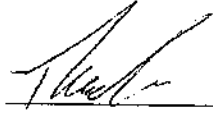
Email: garry.pogil@gmail.com

VERIFICATION

Alla Solovyev, being duly sworn, states that she is the President of MTL (Complainant), and that the foregoing is true to her own knowledge, except as to matters herein stated to be alleged on information and belief. As to the matters stated to be alleged on information and belief, Complainant believes them to be true.


Alla Solovyeva

Subscribed and sworn to before me this 16 day of August, 2018



Notary Public

